

RESIDENTIAL LEASE AGREEMENT

General sample template only. Laws vary by jurisdiction. This document is not legal advice and should be reviewed by a qualified local lawyer before signing.

1. PARTIES AND PREMISES

This Residential Lease Agreement (the "**Agreement**") is entered into on _____, 20____, by and between **Landlord:** _____ ("Landlord") and **Tenant(s):** _____ (collectively, "Tenant").

Landlord leases to Tenant the residential premises located at: _____ (the "Premises"), together with the following included areas or items, if any: _____.

2. TERM

The tenancy begins on _____ and ends on _____. Unless a renewal or extension is signed in writing, Tenant shall vacate the Premises at the end of the stated term, subject to any mandatory rights or notice periods imposed by applicable law.

3. RENT

Tenant shall pay rent of _____ per month, due on the _____ day of each month. Rent shall be paid to _____ at _____ or by another payment method agreed to in writing. Any late fee, returned-payment charge, grace period, or rent-increase procedure must comply with applicable law.

4. SECURITY DEPOSIT

Upon signing, Tenant shall pay a security deposit of _____. The deposit may be used only for purposes permitted by law, including unpaid amounts or repair of damage beyond ordinary wear and tear where legally allowed. Landlord shall hold, account for, and return the deposit within the time and manner required by applicable law.

5. OCCUPANCY

The Premises shall be used solely as a private residence by the following authorized occupants: _____. Tenant shall not permit additional long-term occupants without any consent required under this Agreement, except where applicable law provides otherwise.

6. CONDITION AND DELIVERY

Tenant acknowledges that Tenant has had an opportunity to inspect the Premises. At move-in, the parties should complete a written condition report noting existing defects, damage, appliances, fixtures, keys, meters, and photographs where appropriate. Landlord shall deliver possession as required by law and maintain any legally required habitability standards.

7. UTILITIES AND SERVICES

Responsibility for utilities and services shall be allocated as follows: electricity _____; water _____; gas _____; internet _____; waste collection _____; other _____. Where utility allocation, submetering, or reimbursement is regulated, the parties shall follow applicable disclosure and billing requirements.

8. MAINTENANCE AND REPAIRS

Tenant shall keep the Premises reasonably clean and sanitary, promptly notify Landlord of conditions requiring repair, and avoid intentional or negligent damage. Landlord shall perform repairs and maintenance that are the Landlord's legal responsibility within the time required by law. Tenant shall not make structural changes, install fixtures, repaint, or alter locks without written permission, except where law gives Tenant a contrary right.

9. DAMAGE AND CASUALTY

Tenant is responsible for damage caused by Tenant, occupants, guests, or invitees to the extent permitted by law. If fire, flood, natural disaster, or other casualty substantially impairs the Premises, the parties' rights to repair, rent reduction, temporary relocation, or termination shall be governed by applicable law and any insurance arrangements.

10. ENTRY BY LANDLORD

Landlord may enter the Premises for lawful purposes such as inspection, repairs, maintenance, showing the Premises to prospective tenants or purchasers, or responding to an emergency. Except for emergencies or other legally recognized exceptions, Landlord shall provide the notice required by applicable law and enter at reasonable times.

11. PETS AND ANIMALS

No pet may be kept at the Premises without written permission from Landlord, unless applicable law requires accommodation of an assistance or service animal. Approved pet(s), if any:

_____. Any lawful pet deposit, fee, cleaning obligation, or animal-related rule should be stated in a signed addendum.

12. SMOKING AND HAZARDOUS CONDUCT

Smoking policy: _____. Tenant shall not engage in conduct that creates an unreasonable fire, health, safety, or environmental hazard, and shall comply with lawful building rules concerning combustible materials, dangerous substances, balconies, common areas, and emergency exits.

13. QUIET ENJOYMENT; NUISANCE

Tenant shall not unreasonably disturb neighbors or interfere with the peaceful use of nearby property. Landlord shall not unlawfully interfere with Tenant's lawful possession and quiet enjoyment of the Premises. Building quiet hours or community rules, if any, should be attached to this Agreement.

14. SUBLETTING AND ASSIGNMENT

Tenant shall not assign this Agreement or sublet all or part of the Premises without Landlord's prior written consent where such consent is legally permitted to be required. Any approved sublease or assignment does not release Tenant from obligations under this Agreement unless Landlord expressly agrees in writing.

15. COMPLIANCE WITH LAW AND RULES

The parties shall comply with applicable housing, health, safety, anti-discrimination, rent-control, licensing, registration, and other laws. Tenant shall comply with reasonable written property rules that are lawful, properly disclosed, and applied consistently. If a term of this Agreement conflicts with a mandatory law, the law controls.

16. INSURANCE AND PERSONAL PROPERTY

Landlord's property insurance generally does not cover Tenant's personal property or personal liability. Tenant is encouraged, and where lawfully agreed may be required, to maintain renter's insurance. Tenant remains responsible for safeguarding personal belongings except to the extent a loss is legally attributable to Landlord.

17. DEFAULT AND REMEDIES

A failure to pay rent or a material breach of this Agreement may constitute default. Before exercising a remedy, the party seeking enforcement must provide any notice and opportunity to cure required by law. No provision of this Agreement authorizes unlawful self-help, lockout, utility shutoff, seizure of property, retaliation, or eviction without required legal process.

18. EARLY TERMINATION

Early termination may occur by written agreement or as otherwise allowed by law. Any agreed early termination fee is _____, but only to the extent enforceable. Nothing in this Agreement waives statutory termination rights that may apply in circumstances such as military service, domestic violence protections, uninhabitable conditions, or other legally protected situations.

19. ABANDONMENT

If Tenant appears to abandon the Premises, Landlord shall follow all legally required procedures before retaking possession, disposing of personal property, or re-letting the Premises. Tenant should provide a forwarding address for notices and return of any deposit.

20. NOTICES

Notices under this Agreement shall be delivered by a method permitted by applicable law. Landlord notice address/email: _____. Tenant notice address/email: _____. A party shall promptly notify the other of any change in designated contact information.

21. RENEWAL, HOLDOVER, AND RENT CHANGES

Any renewal should be documented in writing. If Tenant remains after expiration with Landlord's consent, the tenancy shall convert only as provided by applicable law or a written agreement. Any rent increase requires the amount of notice and form of notice required by law.

22. PARKING AND STORAGE

Assigned parking space(s): _____. Storage area(s): _____. Tenant shall use parking and storage only for lawful purposes and in accordance with disclosed property rules. Landlord is not responsible for loss from vehicles or stored items except where liability cannot lawfully be excluded.

23. KEYS, LOCKS, AND SECURITY DEVICES

Keys/access devices issued: _____. Tenant shall return all keys and access devices at move-out. Lock changes, re-keying, security devices, and charges for lost keys are subject to applicable law. No statement in this Agreement guarantees that the Premises or building is crime-free.

24. MOVE-OUT OBLIGATIONS

At the end of the tenancy, Tenant shall vacate, remove personal property, return keys, and leave the Premises reasonably clean, ordinary wear and tear excepted. The parties should document move-out condition. Any deductions from the security deposit must be lawful, itemized where required, and supported as required by applicable law.

25. DISCLOSURES AND ADDENDA

The following disclosures or addenda are attached if applicable: move-in condition report; lead-based paint disclosure; mold or moisture disclosure; bedbug disclosure; flood or natural-hazard disclosure; building rules; pet addendum; parking addendum; utility addendum; guaranty; furnished-property inventory; and any disclosure required by local law. Attached items become part of this Agreement only if identified and signed or otherwise validly incorporated.

26. GOVERNING LAW; DISPUTES

This Agreement is governed by the mandatory law applicable where the Premises are located. Before litigation, the parties may use negotiation or mediation if mutually agreed or legally required. Any forum-selection, arbitration, attorney-fee, or waiver provision must be separately reviewed for enforceability under local law.

27. NO WAIVER; SEVERABILITY

A party's delay or failure to enforce a provision does not necessarily waive future enforcement. If a provision is found invalid or unenforceable, the remaining provisions shall continue to the extent permitted by law.

28. ENTIRE AGREEMENT; AMENDMENTS

This Agreement and its valid attachments contain the parties' complete agreement concerning the tenancy, except for rights that cannot legally be waived. Amendments should be in writing and signed by the parties unless applicable law recognizes another valid method.

29. SPECIAL TERMS

Additional lawful terms, concessions, repairs promised before occupancy, furnishing arrangements, or other negotiated provisions may be written below. If a special term conflicts with mandatory law, the mandatory law controls.

30. ACKNOWLEDGMENTS

By signing, each party acknowledges that they have read this Agreement, had an opportunity to ask questions and seek independent legal advice, and received a copy of the signed Agreement. No signature should be treated as a waiver of rights that applicable law makes non-waivable.

LANDLORD

Name: _____

Signature: _____ Date: _____

TENANT 1

Name: _____

Signature: _____ Date: _____

TENANT 2

Name: _____

Signature: _____ Date: _____

WITNESS / AGENT (if required)

Name: _____

Signature: _____ Date: _____

Important: This is a general educational sample, not a jurisdiction-specific lease. Residential tenancy laws can impose mandatory clauses, disclosures, registration, stamp duty, deposit limits, notice periods, rent-control rules, and execution requirements. Obtain local legal review before relying on this document.